**BRENDAN NGEHSI NEWANFORBI**
Plaintiff, Pro Se / In Propria Persona
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Stockton, CA 95204
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**UNITED STATES DISTRICT COURT**

**NORTHERN DISTRICT OF CALIFORNIA**

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| **BRENDAN NGEHSI NEWANFORBI,**<br><br>Plaintiff,<br><br>v.<br><br>**LONG MOUA, individually and in his official capacity as a CDCR Parole Agent; and DOES 1 through 10, inclusive,**<br><br>Defendants. | Case No. _____<br><br>**COMPLAINT FOR DAMAGES AND DECLARATORY RELIEF**<br><br>(1) 42 U.S.C. § 1983 -- First Amendment Retaliation (File Transfer);<br>(2) 42 U.S.C. § 1983 -- First Amendment Retaliation (Santa Clara Transfer);<br>(3) 42 U.S.C. § 1983 -- Fourteenth Amendment Due Process (Fabricated Violation);<br>(4) Tom Bane Civil Rights Act (Cal. Civ. Code § 52.1);<br>(5) Intentional Infliction of Emotional Distress<br><br>*[Jury Trial Demanded]* |

## COMPLAINT FOR DAMAGES AND DECLARATORY RELIEF

Plaintiff BRENDAN NGEHSI NEWANFORBI, proceeding pro se and in propria persona, files this Complaint for Damages and Declaratory Relief against Defendants, and alleges as follows:

## I. INTRODUCTION

1. This is a civil rights action brought under 42 U.S.C. Section 1983 and the Tom Bane Civil Rights Act, California Civil Code Section 52.1, arising from a calculated pattern of retaliatory conduct by Defendant Long Moua ('Moua'), a California Department of Corrections and Rehabilitation ('CDCR') Parole Agent (Badge #7472), who: (a) received Plaintiff's parole file through a retaliatory colleague-to-colleague transfer approximately fourteen days after Plaintiff filed a federal civil rights lawsuit against Moua's colleague -- a lawsuit in which Moua's own supervisor, Gary Noguchi, was a named defendant; (b) deliberately fabricated a parole violation by directing Plaintiff to attend a telehealth session, withholding the access code required to join the call, then submitting Plaintiff's consequent inability to attend as a willful 'failure to attend treatment' violation into the parole system; and (c) ordered Plaintiff's retaliatory geographic transfer to the Santa Clara Parole GPS Unit seven days after CDCR was served with process in a separate civil rights lawsuit filed by Plaintiff, thereby destroying Plaintiff's active employment, rendering Plaintiff homeless, compelling housing displacement, and forcing sex offender re-registration under threat of an potential sentence of twenty-five years to life under California's Three Strikes Law (Penal Code Section 667(e)(2)(A)).

2. The retaliatory transfer displaced Plaintiff more than sixty miles from his active employment as a Captain in Selling and Support at the Macy's Stockton Sherwood location, where Plaintiff earned $21.50 per hour and had been actively working shifts through July 2, 2026 -- the same day Plaintiff was forced to report to the Santa Clara Parole GPS Unit for the first time. Plaintiff's employment was destroyed as a direct and proximate result of Defendant Moua's transfer order. Plaintiff became homeless on July 2, 2026, and remains homeless as of the date of this filing.

3. This action seeks compensatory damages, statutory damages under the Bane Act, punitive damages, declaratory relief, and costs of suit.

## II. JURISDICTION AND VENUE

4. This Court has original jurisdiction over Plaintiff's federal claims pursuant to 28 U.S.C. Sections 1331 (federal question) and 1343(a)(3) (civil rights), as this action arises under the Constitution and laws of the United States, specifically 42 U.S.C. Section 1983 and the First and Fourteenth Amendments to the United States Constitution.

5. This Court has supplemental jurisdiction over Plaintiff's state law claims -- the Tom Bane Civil Rights Act (Cal. Civ. Code Section 52.1) and Intentional Infliction of Emotional Distress -- pursuant to 28 U.S.C. Section 1367(a), as they arise from the same nucleus of operative facts as the federal claims and form part of the same case or controversy.

6. Venue is proper in this District pursuant to 28 U.S.C. Section 1391(b)(2) because a substantial part of the events giving rise to the claims occurred in this District: the Santa Clara Parole GPS Unit -- the destination of the retaliatory transfer -- is located in Santa Clara County, which is within the Northern District of California. Additionally, Plaintiff completed compelled sex offender re-registration at the Santa Clara County Sheriff's Office in San Jose, California, and Defendant Moua's retaliatory transfer was directed at Plaintiff's relocation into this District.

7. An award of attorney's fees and costs is authorized under 42 U.S.C. Section 1988 and California Civil Code Section 52.1(i).

## III. PARTIES

8. Plaintiff BRENDAN NGEHSI NEWANFORBI ('Plaintiff' or 'Newanforbi') is an individual, a citizen of the State of California, who is required to register as a sex offender under California Penal Code Section 290, and subject to active CDCR parole supervision at all times relevant to this Complaint. Plaintiff was and is a resident of San Joaquin County. Plaintiff became

homeless on July 2, 2026, as a direct result of the retaliatory transfer described herein, and remains homeless as of the date of this filing. Plaintiff brings this action pro se and in propria persona.

9. Defendant LONG MOUA ('Defendant Moua' or 'Moua') is, and at all times relevant herein was, a CDCR Parole Agent (Badge #7472) employed by the State of California. Moua is sued in his individual capacity for damages and in his official capacity for prospective declaratory relief. Moua authored the November 14, 2025 CDCR Form 1502-DR Discharge Review Report regarding Plaintiff, which was reviewed and ratified by his supervisor, Gary Noguchi (Badge #7284). Moua received Plaintiff's parole file on or about January 26, 2026 -- approximately fourteen days after Plaintiff filed a federal civil rights lawsuit against Moua's colleague, Andrew Derrick, in which Moua's own supervisor Noguchi was a named co-defendant. Moua fabricated a parole violation on April 1, 2026. Moua ordered Plaintiff's retaliatory transfer to the Santa Clara GPS Unit on June 29, 2026. Moua acted under color of state law at all times relevant herein. Moua's confirmed telephone number is +1 (510) 227-9994, as documented in Plaintiff's call log.

10. DOES 1 through 10, inclusive: The true names and capacities, whether individual, corporate, associate, or otherwise, of DOES 1 through 10 are unknown to Plaintiff at this time because discovery is needed to determine their identities and specific roles. Upon information and belief, DOES 1 through 10 include CDCR officials who participated in, authorized, or ratified the retaliatory file transfer, the geographic transfer to the Santa Clara GPS Unit, and/or the fabricated violation described herein. At all times relevant herein, each DOE Defendant acted under color of state law. Plaintiff will amend this Complaint to allege their true names and capacities when ascertained through discovery, within the time permitted by Federal Rule of Civil Procedure 15.

11. Defendant Moua is not entitled to absolute immunity. While parole officers may be absolutely immune from suit arising from the 'imposition of parole conditions' under a theory of quasi-judicial absolute immunity -- *Swift v. Christian*, 384 F.3d 1184, 1189 (9th Cir. 2004);

*Chavez v. Robinson*, 12 F.4th 978, 997 (9th Cir. 2021) -- that immunity applies only to quasi-judicial functions such as setting or enforcing legitimate parole conditions. It does not extend to the deliberate fabrication of evidence, the knowing entry of false violations into official records, or the retaliatory exercise of administrative transfer authority. Moua's challenged conduct is not the 'imposition of parole conditions'; it is the manufacturing of a false basis for punitive action and the retaliatory displacement of a parolee in response to his exercise of First Amendment rights. These are administrative supervision functions, not quasi-judicial acts. See *Swift v. California Department of Corrections*, 116 Cal.App.4th 1365, 1369-70 (2004) (parole agents performing administrative functions are not entitled to absolute immunity). The critical factual distinction is that Plaintiff did not violate any condition of parole -- Moua fabricated the violation by withholding the access code Plaintiff needed to comply, then submitted Plaintiff's resulting non-attendance as willful noncompliance. Where the violation itself is fabricated, the enforcement of that fabricated violation cannot be shielded by absolute immunity, because there was no legitimate parole condition to enforce. The Ninth Circuit has held that parole officers may be held liable under Section 1983 for retaliation and due process violations arising from administrative supervisory discretion. *Thornton v. Brown*, 757 F.3d 834 (9th Cir. 2013). The right to be free from fabricated evidence and retaliatory transfers is clearly established. *Devereaux v. Abbey*, 263 F.3d 1070, 1074-75 (9th Cir. 2001) (en banc); *Spencer v. Peters*, 857 F.3d 789, 798 (9th Cir. 2017); *Pratt v. Rowland*, 65 F.3d 802, 806 (9th Cir. 1995).

## IV. FACTUAL ALLEGATIONS

### A. The HOPE Program, CASOMB Complaint, and Telehealth Request (February 2026)

12. At all times relevant herein, Plaintiff was enrolled in HOPE Psychotherapy, Inc. ('HOPE') as his court-ordered sex offender treatment provider under conditions of parole. HOPE operated a group treatment program at 5403 N. Pershing Avenue, Stockton, California.

13. On February 23, 2026, Plaintiff submitted a formal complaint to the California Sex Offender Management Board ('CASOMB') against HOPE Psychotherapy, Inc., documenting that HOPE had failed to: (a) create, review, and sign a treatment plan with Plaintiff; and (b) discuss and review Plaintiff's treatment progress at any point during Plaintiff's enrollment -- both of which are legally required components of court-ordered sex offender treatment under California law.

14. On February 26, 2026, at 3:09 PM, CASOMB investigator Dr. Kirsten Mason emailed Plaintiff requesting confirmation of these specific deficiencies. Plaintiff responded the same day at 4:37 PM, confirming that neither a signed treatment plan nor treatment progress discussions had occurred at any point during his enrollment at HOPE.

15. On February 27, 2026, at 9:22 AM, Plaintiff submitted a telehealth accommodation request to CDCR, seeking to transition from in-person group sessions at the HOPE facility to a telehealth format. This accommodation request is significant because it establishes that Plaintiff legitimately sought telehealth before Moua's March 18 directive -- Moua then weaponized the telehealth transition as the mechanism for manufacturing the fabricated violation described herein.

**B. The Derrick Lawsuit, Noguchi's Involvement, and the Retaliatory File Transfer (January 2026)**

16. On January 12, 2026, Plaintiff filed the First Amended Complaint in *Newanforbi v. Andrew Derrick et al.*, Case No. 2:26-cv-00004-DJC-JDP (E.D. Cal.) -- a twenty-five page Section 1983 civil rights action against Plaintiff's then-assigned CDCR parole agent, Andrew Derrick. Filing the Derrick FAC constitutes protected First Amendment petition activity. *Milhouse v. Carlson*, 652 F.2d 371, 374 (3d Cir. 1981); *Silva v. Di Vittorio*, 658 F.3d 1090, 1104 (9th Cir. 2011).

17. Critically, the Derrick FAC named Gary Noguchi (Badge #7284) as a co-defendant. Noguchi is the Unit Supervisor of the San Joaquin County Parole GPS Unit -- and Moua's direct supervisor. Noguchi reviewed and electronically signed the November 2025 1502-DR that Moua authored. This means Moua's own supervisor was personally named in the same federal civil rights lawsuit from which the retaliatory file transfer originated. The fact that Noguchi was a named defendant in the Derrick FAC establishes, upon information and belief, that Moua had actual or constructive knowledge of Plaintiff's federal litigation activity, because his own supervisor was being sued in the same action. A reasonable inference arises that Noguchi communicated the existence of the Derrick lawsuit to Moua, his subordinate, particularly where the lawsuit directly concerned the conduct of their shared parole unit.

18. The November 2025 1502-DR that Moua authored and Noguchi ratified was itself the subject of judicial scrutiny. In a related writ of mandate proceeding, the Sacramento County Superior Court examined the 1502-DR and expressly questioned CDCR's conduct, stating: 'it is unclear why CDCR appeared to undertake parole discharge review and issue the Discharge Review Report. Indeed, CDCR never explained why it has done so in its briefing, even after Petitioner noted that CDCR's actions were inconsistent with its assertion that it was without authority to conduct parole review for Petitioner.' The court further noted: 'it is not clear why CDCR undertook the early parole review process in the first place, and/or why CDCR refuses to provide any explanation for this course of conduct.' This judicial finding establishes that the very document Moua authored -- the 1502-DR -- was itself unexplained and potentially unauthorized. Moua's willingness to author a discharge review report that even a court found inexplicable demonstrates a pattern of exercising discretionary authority over Plaintiff's parole file in ways that CDCR itself could not or would not justify, providing further context for Moua's subsequent fabrication of the telehealth violation and retaliatory transfer.

19. On or about January 26, 2026 -- approximately fourteen days after the Derrick FAC was filed -- Plaintiff's parole file was transferred from Agent Derrick to Defendant Moua. The

temporal proximity between the filing of the Derrick lawsuit and the file transfer to Moua establishes the first link in the retaliatory chain. *Pratt v. Rowland*, 65 F.3d 802, 807-08 (9th Cir. 1995) (close temporal proximity is 'strongly suggestive' of retaliatory motive). The fact that Noguchi -- Moua's supervisor and a co-defendant in the Derrick lawsuit -- oversaw the parole unit from which the transfer originated further strengthens the inference that the transfer was retaliatory rather than routine.

**C. The Fabricated Telehealth Violation (March-April 2026)**

20. On March 18, 2026, at 1:36 PM, Defendant Moua called Plaintiff (incoming call, fifty-five seconds, from telephone number +1 (510) 227-9994 -- documented in Plaintiff's call log). During this call, Moua directed Plaintiff to: (a) cease attending in-person group sessions at the HOPE facility at 5403 N. Pershing Avenue; and (b) instead attend telehealth sessions with clinician Pam Akins, beginning March 31, 2026.

21. Plaintiff immediately sought to confirm this directive in writing. At 2:07 PM on March 18, 2026, Plaintiff texted Kelly Phaysaleum at HOPE Psychotherapy: 'Good afternoon Kelly. Just wanted to confirm that my physical presence is no longer required for in-person treatment at the HOPE Program facility on 5403 N Pershing Ave starting today?' Kelly responded at 2:12 PM: 'Who is this?' After Plaintiff identified himself, Kelly responded at 2:14 PM: 'Please contact your agent.' Kelly's response demonstrates that HOPE was not formally notified by Moua of the telehealth transition, leaving Plaintiff without written HOPE confirmation that in-person attendance was excused.

22. On March 25, 2026, at 3:24 PM, Defendant Moua texted Plaintiff the following: 'Starts 3/31/26 / Telehealth for HOPE / Tuesdays/Thursdays / 9AM-1030AM / Call 617-675-4444.' Moua provided a ten-digit telephone number but did not provide an access code, meeting PIN, or any other credential required to join the teleconference.

23. At 3:29 PM on March 25, 2026 -- five minutes after Moua's text -- Plaintiff replied: 'Is there an Access Code for this conference call I should be aware of?' Defendant Moua never responded to this question. This text exchange is the linchpin of the fabricated violation. Moua provided a phone number but no access code. Plaintiff asked for the access code immediately and explicitly. Moua's failure to respond to this direct question -- while the session was still six days away -- is documented and undeniable in the contemporaneous text message record.

24. On March 31, 2026, at 9:01 AM -- the morning of the first scheduled telehealth session -- Plaintiff texted Moua: 'Agent Moua, please provide me with the Google pin needed to enter the call.' Moua again did not respond. Plaintiff was unable to enter the telehealth conference call without the access code. Google Meet, Zoom, and all major teleconferencing platforms require a meeting PIN or access code to join a session. Plaintiff was therefore unable to attend the session through no fault of his own -- Moua controlled the only path to Plaintiff's session access and deliberately or recklessly withheld it.

25. On April 1, 2026, at 9:35 AM, Defendant Moua texted Plaintiff: 'Come to the office.' At the office, Moua questioned Plaintiff about the missed March 31 telehealth session. Plaintiff stated he had attempted to obtain the access code needed to enter the conference call. Moua asserted he had provided the access code -- a claim directly contradicted by the contemporaneous text message record, which shows no access code was ever transmitted in any message from Moua to Plaintiff at any time.

26. Moua then stated affirmatively: 'I will be submitting this as a violation -- failure to attend treatment -- into the system.' This statement constitutes the fabrication: Moua knowingly submitted a 'failure to attend treatment' violation into Plaintiff's parole administrative record when Moua himself had prevented Plaintiff's attendance by withholding the required access code. The fabricated violation constitutes a knowing entry of false information into an official government

record. *Devereaux v. Abbey*, 263 F.3d 1070, 1074-75 (9th Cir. 2001) (en banc); *Spencer v. Peters*, 857 F.3d 789, 798 (9th Cir. 2017) (to prevail on a deliberate fabrication claim, plaintiff must prove the defendant deliberately fabricated evidence and the fabrication caused a deprivation of liberty). The text message chain of March 25 through April 1, 2026, constitutes direct evidence of fabrication. *Spencer*, 857 F.3d at 799-800 (direct evidence of fabrication -- such as 'direct misquotation of witnesses in investigative reports' -- does not require an additional showing that the defendant knew of the plaintiff's innocence).

**D. Plaintiff's Employment at Macy's (May-July 2026)**

27. On May 28, 2026, Plaintiff commenced employment as a Captain in Selling and Support at the Macy's Stockton Sherwood location (5242 Pacific Ave, MCE 71338, Stockton, CA 95207), earning $21.50 per hour. The Macy's job offer letter confirms the position title, hourly compensation rate, and start date. Plaintiff was actively working scheduled shifts at Macy's through July 2, 2026 -- the same day Plaintiff was forced to report to the Santa Clara Parole GPS Unit for the first time.

**E. The CDCR Lawsuit and Retaliatory Transfer (June 2026)**

28. On June 11, 2026, Plaintiff filed *Newanforbi v. CDCR, et al.*, Case No. STK-CV-UPI-2026-0005417 (San Joaquin Superior Court, Judge Jayne Lee, Dept. 10C). Named defendants include CDCR and Dodd, with Joseelyn Rojo as an additional defendant in the same supervisory chain as Moua. Filing this lawsuit constitutes Plaintiff's second instance of protected First Amendment petition activity relevant to this Complaint.

29. On June 22, 2026, Defendants CDCR and Dodd were served with process in the CDCR lawsuit. Service on June 22 placed the CDCR supervisory structure -- including Defendant Moua's unit -- on formal notice that Plaintiff had filed a civil rights action against the agency and

individual officials, triggering the retaliatory response that followed.

30. On June 29, 2026 -- seven days after service of the CDCR lawsuit, and eighteen days after the complaint was filed -- Defendant Moua called Plaintiff and directed him to report to the Stockton parole office for a urinalysis ('UA') per conditions of parole. Upon conclusion of providing the urine sample, Moua stated: 'You will report to the Santa Clara Parole office on Thursday.' Moua then cited the reason: 'Too many violations.'

31. The 'too many violations' explanation is a pretextual cover for the retaliatory transfer. The fabricated March 31 telehealth violation -- manufactured by Moua himself by withholding the access code -- was among the violations Moua counted. Under the fabricated violation theory, Moua created a false administrative record entry, then used that false entry as one of the justifications for the transfer, rendering the entire transfer decision tainted by the underlying fabrication. *Hartman v. Moore*, 547 U.S. 250, 256 (2006) (retaliatory motive must be a but-for cause of the adverse action). A justification built on fabricated evidence is not a justification at all. *Mt. Healthy City Sch. Dist. Bd. of Educ. v. Doyle*, 429 U.S. 274, 287 (1977).

32. The temporal proximity between the CDCR lawsuit and the retaliatory transfer independently establishes causation. *Pratt v. Rowland*, 65 F.3d 802, 807-08 (9th Cir. 1995); *Villiarimo v. Aloha Island Air, Inc.*, 281 F.3d 1054, 1065 (9th Cir. 2002); *Coszalter v. City of Salem*, 320 F.3d 968, 977 (9th Cir. 2003); see also *Clark County Sch. Dist. v. Breeden*, 532 U.S. 268, 273-74 (2001) (very close temporal proximity alone can be sufficient evidence of causation).

**F. Employment Destruction, Homelessness, and Forced Displacement (July 2026)**

33. On July 2, 2026, Plaintiff reported to Agent Brown at the Santa Clara Parole GPS Unit for the first time. On the same day, at 3:12 PM, Plaintiff texted Agent Brown his Macy's work schedule and job offer letter, stating: 'Good afternoon Agent Brown. I have a job at Macy's in

Stockton. Here's the schedule.' Plaintiff then asked: 'Do I have your permission to keep going to work while I transition to Santa Clara sir?' No permission was granted. July 2, 2026, was Plaintiff's last day of work at Macy's.

34. On July 2, 2026, Plaintiff became homeless. He had been displaced from his housing in San Joaquin County by the retaliatory transfer to Santa Clara County -- a distance of more than sixty miles. Plaintiff has remained continuously homeless from July 2, 2026, through the date of this filing. Moua's retaliatory transfer is the direct and proximate cause of Plaintiff's homelessness.

35. On July 5, 2026, Plaintiff's Macy's manager, Lety Villarreal, sent the first missed-shift text message at 11:33 AM. On July 7, 2026, a second missed-shift notice was sent at 10:14 AM. Plaintiff was forced to request a medical leave of absence ('LOA') because he could not disclose the true reason for his absence. On July 8, 2026, Macy's confirmed Plaintiff's LOA with a preferred return date of August 12, 2026. Plaintiff has not worked at Macy's since July 2, 2026. The retaliatory transfer caused the complete destruction of Plaintiff's active employment. Plaintiff worked an average of approximately thirty-seven to forty hours per week at Macy's. Plaintiff's lost wages from July 2, 2026, forward, at $21.50 per hour, are ongoing and continuing, and constitute a present loss of approximately $860 per week in gross wages.

**G. Sex Offender Registration Under Duress (July 6, 2026)**

36. On July 6, 2026, at 4:00 PM, by appointment, Plaintiff completed mandatory sex offender re-registration at the Santa Clara County Sheriff's Office, located at 55 W. Younger Avenue, San Jose, California. The registration was required within the statutory thirty-day transient registration period under California Penal Code Section 290.

37. Failure to timely complete sex offender registration under Penal Code Section 290

would have triggered Plaintiff's THIRD STRIKE under California's Three Strikes Law (Penal Code Section 667(e)(2)(A)), resulting in an automatic sentence of twenty-five years to life in state prison. Plaintiff completed this compelled registration during a period of active homelessness and employment destruction caused directly by Moua's retaliatory transfer. The combination of the registration obligation under threat of life imprisonment, while simultaneously homeless and unemployed by the same retaliatory actor, constitutes an objectively extreme and outrageous set of circumstances supporting Plaintiff's emotional distress claims in their severest form. See *Cal. Penal Code Section 290.011* (transient registration requirements).

38. Plaintiff confirmed the registration completion in a text to Agent Brown at 6:05 PM on July 6, 2026: 'Good evening Agent Brown. Few updates for you sir: 1. Just completed registration at the Sheriff's Office downtown and scheduled to update next month. 2. I also found a job at Amazon with a start date of July 28, 2026 at 4:30 AM in Fremont, CA...' -- demonstrating Plaintiff's active and ongoing efforts to mitigate damages despite the retaliatory transfer and homelessness.

**H. Heck v. Humphrey Does Not Bar This Action**

39. This action is not barred by *Heck v. Humphrey*, 512 U.S. 477, 487 (1994). The fabricated March 31, 2026 violation has not been used as the basis for any parole revocation proceeding or extension of custody. Plaintiff challenges only the administrative record entry and the retaliatory actions taken based upon it -- not the fact or duration of his parole, his underlying criminal conviction, or his sentence. The Ninth Circuit has held that a Section 1983 action challenging parole conditions is not barred by *Heck* where the action does not collaterally attack either the fact of a parolee's confinement or the parolee's underlying conviction or sentence. *Thornton v. Brown*, 757 F.3d 834, 839-42 (9th Cir. 2013) (reversing dismissal of Section 1983 challenge to GPS monitoring and residency restrictions; *Heck* inapplicable where success would not 'necessarily imply the invalidity of the fact or duration of parole'). Because success on

Plaintiff's claims would not invalidate any conviction, sentence, or parole revocation, *Heck* does not apply.

**COMPLIANCE WITH THE GOVERNMENT CLAIMS ACT**

40. On July 18, 2026, Plaintiff presented a written claim to the California Government Claims Program -- the appropriate state claims entity for claims against CDCR and its employees (Gov. Code Section 915(b)) -- identifying the conduct of Defendant Moua, the March-April 2026 fabricated violation, and the June 29, 2026 retaliatory transfer as the bases for Plaintiff's state law claims. The claim was accepted for filing and the $25 filing fee was processed. The California Government Claims Program did not act on Plaintiff's claim within the forty-five-day period prescribed by Government Code Section 912.4(a). That period expired on or about September 1, 2026, and Plaintiff's claim was thereupon deemed rejected by operation of law. Gov. Code Section 912.4(c). No written notice of action on the claim was ever given. Gov. Code Section 913. Plaintiff has therefore satisfied the exhaustion requirement of Government Code Section 945.4. This Complaint is filed on September 16, 2026 -- after the claim was deemed rejected on September 1, 2026 -- and is therefore not premature. Because no written notice of rejection conforming to Government Code Section 913 was ever served, the two-year limitations period of Government Code Section 945.6(a)(2) applies, and this Complaint is filed well within it.

**FIRST CAUSE OF ACTION**

**42 U.S.C. Section 1983 -- First Amendment Retaliation**

**(Retaliatory File Transfer)**

**(Against Defendant Moua and DOES 1-10)**

41. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

42. Plaintiff engaged in constitutionally protected activity when he filed the First Amended Complaint in *Newanforbi v. Andrew Derrick et al.*, Case No. 2:26-cv-00004-DJC-JDP (E.D. Cal.), on January 12, 2026. *Bill Johnson's Restaurants, Inc. v. NLRB*, 461 U.S. 731, 741 (1983); *Silva v. Di Vittorio*, 658 F.3d 1090, 1104 (9th Cir. 2011).

43. Approximately fourteen days after the Derrick FAC was filed, Plaintiff's parole file was transferred from Agent Derrick to Defendant Moua -- Derrick's colleague at the same CDCR parole unit, supervised by Gary Noguchi, who was a named co-defendant in the same Derrick lawsuit. A transfer of parole supervision to a colleague of the sued agent -- whose shared supervisor is a co-defendant in the same lawsuit -- is an adverse action that would chill a person of ordinary firmness from continuing to engage in protected activity. *Rhodes v. Robinson*, 408 F.3d 559, 567-68 (9th Cir. 2005); *Brodheim v. Cry*, 584 F.3d 1262, 1270 (9th Cir. 2009).

44. Moua had actual or constructive knowledge of the Derrick lawsuit because his direct supervisor, Noguchi, was a named defendant in the same action. A reasonable parole agent whose own supervisor is sued in a federal civil rights action arising from the conduct of their shared unit would be aware of the lawsuit's existence.

45. The fourteen-day temporal proximity between the filing of the Derrick FAC and the file transfer to Moua establishes a causal nexus. *Pratt v. Rowland*, 65 F.3d 802, 807-08 (9th Cir. 1995). Defendant Moua is not entitled to qualified immunity because the right of a parolee to file civil rights lawsuits without suffering retaliatory supervision changes has been clearly established since at least *Pratt* (1995). *Rhodes*, 408 F.3d at 570.

46. As a direct and proximate result of the retaliatory file transfer, Plaintiff suffered injury

including placement under the supervision of an agent who subsequently fabricated a parole violation and ordered a retaliatory geographic transfer that destroyed Plaintiff's employment, rendered Plaintiff homeless, and caused all injuries described herein.

## SECOND CAUSE OF ACTION

**42 U.S.C. Section 1983 -- First Amendment Retaliation**

**(Retaliatory Transfer to Santa Clara GPS Unit)**

**(Against Defendant Moua and DOES 1-10)**

47. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

48. Plaintiff engaged in constitutionally protected activity when he: (a) filed *Newanforbi v. CDCR, et al.*, Case No. STK-CV-UPI-2026-0005417, on June 11, 2026; and (b) served CDCR and Dodd with process on June 22, 2026. *California Motor Transport Co. v. Trucking Unlimited*, 404 U.S. 508, 510 (1972).

49. Seven days after service -- and eighteen days after filing -- Defendant Moua ordered Plaintiff's transfer to the Santa Clara GPS Unit on June 29, 2026, stating: 'You will report to the Santa Clara Parole office on Thursday,' then citing 'Too many violations.' The transfer constitutes an adverse action of extraordinary severity: geographic displacement exceeding sixty miles; destruction of active employment at $21.50 per hour; immediate homelessness; imposition of GPS monitoring obligations; and compelled sex offender re-registration under threat of a potential sentence of twenty-five years to life under the Three Strikes Law.

50. The seven-day interval is 'strongly suggestive' of retaliatory motive. *Pratt*, 65 F.3d at 807-08; *Villiarimo*, 281 F.3d at 1065; *Breeden*, 532 U.S. at 273-74.

51. Moua's 'too many violations' justification is pretextual. The fabricated March 31 violation was among them. Because the fabricated violation taints the rationale, Moua cannot carry the *Mt. Healthy* burden. 429 U.S. at 287. But for Plaintiff's filing of the CDCR lawsuit and service of process on June 22, 2026, Defendant Moua would not have ordered the retaliatory transfer on June 29, 2026. The transfer was caused by -- and would not have occurred absent -- Plaintiff's protected petition activity. *Hartman*, 547 U.S. at 256.

52. Moua is not entitled to qualified immunity. *Pratt*, 65 F.3d at 806; *Rhodes*, 408 F.3d at 570.

53. As a direct and proximate result: lost wages at $21.50/hour from July 2, 2026 forward and continuing; loss of employment benefits; homelessness from July 2, 2026 and continuing; emotional distress from compelled re-registration under three-strike duress; and ongoing GPS monitoring obligations.

**THIRD CAUSE OF ACTION**

**42 U.S.C. Section 1983 -- Fourteenth Amendment Due Process**

**(Fabricated Parole Violation)**

**(Against Defendant Moua and DOES 1-10)**

54. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

55. Plaintiff has a cognizable liberty interest in accurate parole records and in freedom from fabricated violations. *Morrissey v. Brewer*, 408 U.S. 471, 482 (1972); *Greenholtz v. Inmates of Nebraska Penal & Correctional Complex*, 442 U.S. 1 (1979).

56. Moua deliberately fabricated the March 31 violation. The contemporaneous text record demonstrates: (a) Moua provided a phone number but no access code on March 25; (b) Newanforbi explicitly requested the code at 3:29 PM on March 25; (c) Moua did not respond; (d) Newanforbi again requested the code at 9:01 AM on March 31; (e) Moua again did not respond; (f) Newanforbi could not attend without the code; and (g) Moua submitted the non-attendance as willful 'failure to attend treatment.' This constitutes direct evidence of fabrication under *Spencer v. Peters*, 857 F.3d 789, 799-800 (9th Cir. 2017).

57. The fabrication caused a concrete deprivation of liberty. *Spencer*, 857 F.3d at 798. The fabricated violation was used as a stated justification for the retaliatory transfer to the Santa Clara GPS Unit, which caused: (a) geographic displacement exceeding sixty miles; (b) destruction of active employment; (c) homelessness; (d) compelled sex offender re-registration under three-strike duress; (e) GPS monitoring obligations; and (f) an inaccurate and prejudicial parole record. The fabricated violation was not a trivial or inconsequential entry -- it was the linchpin of the retaliatory transfer and the cascade of injuries that followed.

58. Plaintiff also possesses a protected liberty interest under the stigma-plus doctrine. Moua's knowing entry of a false 'failure to attend treatment' violation into Plaintiff's official parole record, when coupled with the tangible burdens that directly flowed from that false entry -- retaliatory transfer, destruction of employment, homelessness, GPS monitoring, and compelled re-registration under three-strike duress -- constitutes a deprivation of liberty without due process. *Paul v. Davis*, 424 U.S. 693, 708-09 (1976) (stigma plus alteration of legal status satisfies due process threshold); see also *Zahrey v. Coffey*, 221 F.3d 342, 348 (2d Cir. 2000) (persuasive

authority recognizing that 'the deliberate manufacture of evidence by a law enforcement officer ... violates the Constitution').

59. Moua is not entitled to qualified or absolute immunity. The right to be free from deliberately fabricated evidence has been clearly established since *Devereaux* (2001) and *Spencer* (2017). No reasonable parole agent could believe that withholding the sole means of accessing a mandated session, then submitting the parolee's non-attendance as willful noncompliance, was constitutionally permissible. The quasi-judicial absolute immunity recognized in *Swift v. Christian*, 384 F.3d 1184, 1189 (9th Cir. 2004), and *Chavez v. Robinson*, 12 F.4th 978, 997 (9th Cir. 2021), does not apply here because Moua's challenged conduct -- fabricating evidence and ordering a retaliatory transfer -- is not the 'imposition of parole conditions' but the abuse of administrative authority to punish protected activity. The Ninth Circuit has squarely held that the rights asserted herein are clearly established in the parole-supervision context. *Thornton v. Brown* , 757 F.3d 834 (9th Cir. 2013). A parole agent's administrative authority does not shield the deliberate fabrication of evidence or the retaliatory exercise of supervisory discretion from constitutional scrutiny.

## FOURTH CAUSE OF ACTION

**Tom Bane Civil Rights Act**

**California Civil Code Section 52.1**

**(Against All Defendants)**

60. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

61. California Civil Code Section 52.1 provides a private right of action against any person who 'interferes by threat, intimidation, or coercion' with the exercise of rights secured by the Constitution or laws of the United States or of this state. *Jones v. Kmart Corp.* (1998) 17 Cal.4th 329, 334.

62. Moua interfered with Plaintiff's First and Fourteenth Amendment rights by means of threats, intimidation, and coercion independent from the underlying constitutional violations, including: (a) Moua's deliberate withholding of the telehealth access code -- creating a knowingly impossible compliance demand -- followed by his in-person statement on April 1, 2026: 'I will be submitting this as a violation -- failure to attend treatment -- into the system,' which constitutes an independent act of coercion and intimidation made during an official parole meeting, separate from the underlying constitutional violation itself (see *Cornell v. City & County of San Francisco* (2017) 17 Cal.App.5th 766, 790-804 (the 'threat, intimidation, or coercion' element requires a specific intent to violate protected rights)); (b) the execution of the retaliatory transfer -- an act of coercion by geographic displacement, employment destruction, and imposition of homelessness; and (c) the compelled sex offender re-registration under threat of a potential sentence of twenty-five years to life, constituting intimidation of the highest order. Moua's coercive conduct was independent from the constitutional violations themselves because the transfer was executed through the exercise of government authority and official capacity, using the threat of GPS monitoring and the implicit threat of parole revocation to compel Plaintiff's compliance with the retaliatory transfer. This coercion was separate from and additional to the constitutional violation of fabricating the violation itself. See *Shoyoye v. County of Los Angeles* (2012) 203 Cal.App.4th 947, 959 (the Bane Act requires that the 'threat, intimidation, or coercion' be independent from the coercion inherent in the underlying wrong itself); the coercive mechanisms here -- Moua's in-person threat of official action, the exercise of transfer authority, the implicit threat of revocation, and the compelled registration under three-strike duress -- are each independent acts of government power separate from the fabrication of the violation.

63. Moua acted with specific intent to interfere with Plaintiff's First Amendment right to petition the government and Fourteenth Amendment right to be free from fabricated evidence. Moua's statement -- 'I will be submitting this as a violation' -- made in person immediately after Plaintiff explained he lacked the access code, demonstrates Moua's specific intent to punish Plaintiff for his protected activity and to chill future exercise of those rights. The calculated, multi-step nature of Moua's conduct -- withhold the access code, ignore two written requests, fabricate the violation, cite it to justify the transfer -- is inconsistent with negligence or mistake and reflects deliberate, purposeful interference.

64. Qualified immunity is unavailable as a defense to Bane Act claims. *Venegas v. County of Los Angeles* (2007) 153 Cal.App.4th 1230, 1243-47 ('Venegas II').

65. Pursuant to California Civil Code Section 52.1(b), Plaintiff is entitled to: (a) actual damages; (b) statutory damages of not less than $4,000 for each violation; (c) up to three times actual damages; and (d) injunctive or other equitable relief. Pursuant to Section 52.1(f), Plaintiff may seek injunctive relief including an order restraining Defendants from continuing to interfere with Plaintiff's constitutional rights. Pursuant to Section 52.1(i), Plaintiff is entitled to attorney's fees and costs as the prevailing plaintiff.

## FIFTH CAUSE OF ACTION

**Intentional Infliction of Emotional Distress**

**(Against Defendant Moua)**

66. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

67. Moua's conduct was extreme and outrageous, exceeding all bounds of decency tolerable in a civilized society. *Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050-51; see also *Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 1001 (conduct by a person in a position of authority who abuses that position to cause harm is more likely to satisfy the 'extreme and outrageous' standard). Moua occupied a position of extraordinary authority over Plaintiff as a parole agent with the power to submit violations, order geographic transfers, and effectively compel compliance under threat of revocation and life imprisonment. Moua abused that authority by: (a) deliberately withholding the access code; (b) fabricating a parole violation; (c) submitting the fabrication into an official government record; (d) using the fabrication to justify a retaliatory transfer; and (e) ordering the transfer seven days after CDCR was served in Plaintiff's lawsuit, destroying Plaintiff's employment, rendering Plaintiff homeless, and compelling sex offender re-registration under threat of a potential sentence of twenty-five years to life.

68. Moua acted intentionally and with reckless disregard. Moua knew Newanforbi needed the access code (two written requests); knew the non-attendance was not willful (the text record contradicts Moua's claim); and knew the transfer would cause employment loss, homelessness, and compelled re-registration under three-strike duress.

69. Plaintiff has suffered and continues to suffer severe emotional distress including: loss of employment at $21.50/hour; homelessness from July 2, 2026 and continuing; compelled sex offender re-registration at the Santa Clara County Sheriff's Office under threat of a potential sentence of twenty-five years to life; ongoing GPS monitoring; anxiety; sleeplessness; and humiliation. Moua's conduct was undertaken with malice, oppression, and fraud within the meaning of California Civil Code Section 3294. Moua's malice is evidenced by specific, documented acts: (a) his deliberate withholding of the telehealth access code despite two explicit written requests from Plaintiff; (b) his knowing submission of a false 'failure to attend treatment' violation after Plaintiff informed him no access code was ever provided; (c) his use of the fabricated violation as a stated justification for a retaliatory geographic transfer; and (d) his

ordering of the transfer seven days after CDCR was served with Plaintiff's civil rights lawsuit. These acts demonstrate a conscious disregard for Plaintiff's rights and a deliberate intent to cause injury.

## PRAYER FOR RELIEF

WHEREFORE, Plaintiff BRENDAN NGEHSI NEWANFORBI respectfully prays for judgment against Defendants, and each of them, as follows:

**On the First, Second, and Third Causes of Action (42 U.S.C. Section 1983):**

1. For compensatory damages for lost wages ($21.50/hour from July 2, 2026, forward and continuing), lost employment benefits, homelessness, emotional distress, humiliation, anxiety, and all other compensable injuries, according to proof at trial;

2. For punitive damages against Defendant Moua in his individual capacity in an amount sufficient to punish and deter the fabrication of parole violations and retaliatory transfers;

3. For declaratory relief declaring that: (a) the March 31, 2026 'failure to attend treatment' violation was fabricated by Defendant Moua and shall be expunged from Plaintiff's parole record; (b) the transfer to the Santa Clara GPS Unit was retaliatory and without legitimate penological justification; and (c) Defendant Moua's conduct violated Plaintiff's rights under the First and Fourteenth Amendments;

**On the Fourth Cause of Action (Bane Act -- Cal. Civ. Code Section 52.1):**

4. For actual damages according to proof at trial;

5. For statutory damages of not less than $4,000 per violation, pursuant to Section 52.1(b);

6. For up to three times actual damages pursuant to Section 52.1(b);

7. For injunctive relief pursuant to Cal. Civ. Code Section 52.1(f), including a mandatory injunction ordering expungement of the fabricated March 31, 2026 violation from Plaintiff's parole record and enjoining further retaliatory supervision;

**On the Fifth Cause of Action (IIED):**

8. For compensatory damages for severe emotional distress, according to proof;

9. For punitive damages pursuant to California Civil Code Section 3294;

**On All Causes of Action:**

10. For reasonable attorney's fees and costs pursuant to 42 U.S.C. Section 1988(b) and California Civil Code Section 52.1(i), to the extent Plaintiff is represented by counsel, and for pro se litigation costs to the extent permitted by law;

11. For prejudgment interest as permitted by law;

13. For costs of suit incurred herein;

14. For such other and further relief as this Court deems just and proper.

## DEMAND FOR JURY TRIAL

Plaintiff hereby demands a trial by jury on all issues so triable pursuant to Federal Rule of Civil Procedure 38(b) and the Seventh Amendment to the United States Constitution.

Dated: September 16, 2026

_____

BRENDAN NGEHSI NEWANFORBI
Plaintiff, Pro Se / In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
E-mail: bnn.cdla@gmail.com

**VERIFICATION**

I, BRENDAN NGEHSI NEWANFORBI, declare:

I am the Plaintiff in the above-entitled action. I have read the foregoing Complaint for Damages and Declaratory Relief and know its contents. The matters stated therein are true of my own knowledge, except as to those matters stated on information and belief, and as to those matters I believe them to be true.

I declare under penalty of perjury under the laws of the United States of America and the State of California that the foregoing is true and correct. 28 U.S.C. Section 1746.

Executed on September 16, 2026,

at Stockton, California.

_____

BRENDAN NGEHSI NEWANFORBI